

Ram Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 February 2020 · WRIT - C No. - 6084 of 2020 · WRIT - C No. - 6084 of 2020 · **Writ disposed; apply under Clauses 5.6 and 6.5 for speaking order**

HEADNOTE

On a consumer's plea that a defective meter had generated bills and a demand requiring examination under Clauses 5.6 and 6.5 of the U.P. Electricity Supply Code, 2005, the Division Bench disposed of the writ by directing a comprehensive application under those clauses within two weeks. If filed, respondent no. 2 was to examine and decide it within four weeks by a reasoned speaking order. The Power Corporation did not oppose time-bound consideration. Meter and billing merits were not decided.

FACTUAL SUMMARY

Ram Chandra petitioned the Allahabad High Court alleging that his electricity meter had become defective and that bills and a demand raised on that footing required examination under Clauses 5.6 and 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the Power Corporation did not object to a time-bound consideration of the grievance. The Division Bench of Ramesh Sinha and Ajit Kumar JJ. heard both sides and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

defective-meter-billing-alternate-remedy

HOLDING

Where the consumer alleged a defective meter and disputed bills and demand, and the licensee did not oppose time-bound consideration, the writ was disposed of directing the petitioner to file a comprehensive application under Clauses 5.6 and 6.5 within two weeks; if so filed, respondent no. 2 was to examine and dispose of it within four weeks by a reasoned speaking order. The Court did not decide the meter or billing merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ disposed by relegating the defective-meter billing dispute to a comprehensive application under Clauses 5.6 and 6.5, to be decided by the competent authority on a speaking order; no merits grant or refusal. ¶ 1

6.5-representation-as-appropriate-remedy Petitioner directed to make a comprehensive representation under the Supply Code; respondent no. 2 to examine and dispose of it within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S METER WAS DEFECTIVE AND WHETHER THE BILLS AND DEMAND WERE CORRECTLY RAISED

Left to respondent no. 2 to decide on a comprehensive application under Clauses 5.6 and 6.5 ¶ 1